
Dove Federation School Visit Report**Audit Date: 15/01/20****Report: Year 2 visit 1****DPE: Stuart Lee****School member: Sarah Disney and Clair Greenacre**

1. Visit details

In addition to the audit walk, key GDPR documentation was reviewed and DPE best practice areas were discussed/demonstrated with the school:

- Clair will update the schools/federations website to ensure the GDPR policy and Privacy Notices all match and are displayed correctly. JE was also removed as the named DPO during the visit;
- The Compliance Checklist was revisited and updated;
- Best practice guide downloaded and will be displayed in the staffroom;
- The federation was supported with updating the ICO registration to that of the federation;
- Cyber essentials questionnaire was sent to the IT technician for completing;
- Federation were signposted to the FOI and publication scheme guidance on the DPE website;
- Discussed **password manager** and securing passwords rather than using paper systems that could be lost or stolen. School to liaise with IT provider for advice and to identify if they can password protect a folder/word document (function appeared to be disabled during visit), or whether there are any NCC recommended products.

SL to follow up with Kalina (DPE) for a remote session to go over registration of a staff member as there was an issue registering on the DPE website during the visit (actioned).

School staff have completed The School Bus GDPR training and Sarah completes internal awareness training. It was suggested that key staff also complete the DPE e-learning training.

Audit walk findings

The federation have been working through actions/recommendations from the previous visit; Digigreet secure signing in system is now used across the federation; additional secure storage purchased for sensitive files in offices and forename only has been adopted across the federation for lists and displays. Sarah has completed a data cleanse of the federations physical and electronic data and the federation make good use of Pupil Asset to record and maintain consent. Good GDPR practice and awareness was observed again during the visit.

Although there was limited secure storage in some classrooms with folders stored on open shelving, to minimise the privacy risk, the school has adopted forename only for information in folders and classrooms are locked at night.

Trips procedure:

The school could minimise the risk to trip contact data being misplaced by including in the current trips procedure 'tick list' staff guidance/procedure for returning of paperwork to the front office after trips have taken place.

Learning journals (classroom):

- One classroom had learning journals on display. **Advisory:** complete a reshuffle and move to available storage area (curtained).

Staffroom:

- Lists (forename only) that also had additional identifiers (PP and SEND). **Advisory:** although only using forename, as the lists linked to sensitive information, the school could cover/move to a folder system.

2. Compliance actions that should now be completed

Initial documents:

- **Privacy Notice – Federation to update the Website for the Dove Federation**
- **GDPR Policy**
- **Data Breach Procedure.**
- **SAR procedure**
- **Photo and Video consent**

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee/James England, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. If using GDPRiS this should also be kept updated. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

2.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: [https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016 IRMS Toolkit for Schools v5 Master.pdf](https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016%20IRMS%20Toolkit%20for%20Schools%20v5%20Master.pdf)
- DfE toolkit
[https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data Protection Toolkit for Schools OpenBeta.pdf](https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf) (Annex 5,1)

2.2. Staff training

GDPR training should be completed and documented. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

2.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

2.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

3. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

4. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

5. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

5.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

6. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>